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QUESTION 4: Law Proposed by Initiative Petition

Election Day Registration

Do you approve of a law summarized below, on which no vote was taken by the Senate or the House of Representatives before May 6, 2026?

SUMMARY ▶
As required by law, summaries are written by the State Attorney General.

This proposed law would permit eligible individuals to register to vote or update their voter registration address on Election Day.

An individual who is eligible to vote could register to vote on Election Day by going to the polling place in the precinct where they live during voting hours and presenting proof of residency and signing a written oath. Proof of residency could be a valid photo identification, or documentation showing the individual's name and the address where the individual resides, such as a current utility bill, bank statement, government check, residential lease, wireless telephone statement, paycheck, current student fee statement or other document from a post-secondary school, or another government document or correspondence. The written oath would require the individual to certify that they are a citizen of the United States, are at least 18 years old, are not legally prohibited from voting, and have not and will not vote in the same election at another location. The oath would require the individual to acknowledge that providing false information is a felony punishable by not more than 5 years imprisonment or a fine of not more than $10,000, or both.

If an individual did not present proof of residency, they would be allowed to cast a provisional ballot, which would be counted only if the individual returned to provide the required information before the close of polls for a municipal election; within two days after a state primary; or within six days after a state election.

Individuals who register to vote on Election Day would be registered to vote in future elections as well as in the election taking place that day.

Individuals who are already registered to vote would not be able to change their political party affiliation on Election Day.

The proposed law would take effect on January 1, 2028.

WHAT YOUR VOTE WILL DO ▶
As required by law, the statements describing the effect of a "yes" or "no" vote are written jointly by the State Attorney General and the Secretary of the Commonwealth.

A YES VOTE would permit eligible citizens to register to vote or to update their voter registration address at their polling place on Election Day.

A NO VOTE would make no change to the laws governing voter registration.

STATEMENT OF FISCAL CONSEQUENCES ▶
As required by law, statements of fiscal consequences are written by the Executive Office of Administration and Finance.

The proposed law has no discernible material fiscal consequences for state and municipal government finances.

ARGUMENTS ▶ As provided by law, the 150-word arguments are written by proponents and opponents of each question, and reflect their opinions. **The Commonwealth of Massachusetts does not endorse these arguments, and does not certify the truth or accuracy of any statement made in these arguments**. The names of the individuals and organizations who wrote each argument, and any written comments by others about each argument, are on file in the Office of the Secretary of the Commonwealth.

IN FAVOR:

A vote for Election Day Registration ensures our democracy is truly representative, secure, and modern.

This law would give eligible Massachusetts citizens the ability to register or update their address on Election Day – an opportunity voters in the rest of New England already have.

Allowing voters to register at the polls will give thousands of citizens the chance to participate in important national elections. This policy especially helps those who move frequently, like young people and renters.

Importantly, Election Day Registration enhances election security. Election Day registrants must present verified proof of residence at the polls and sign an oath backed by severe felony penalties to ensure accountability and deter fraud. Provisional ballots would be available to protect the integrity of the vote if documentation is missing.

This law provides maximum voter access with rigorous security safeguards. It is a common-sense reform that guarantees every eligible voice is heard.

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AGAINST:

The public welfare demands that elections be protected from fraud. Same-day voter registration prejudices that welfare by eliminating the advance period during which election officials can examine a registrant's identity, residence, eligibility, or duplicate registration before a ballot is issued.

Instead, officials would be required to make those determinations at the polling place, under substantial time pressure and amid the extraordinary demands of Election Day. Errors, false statements, or conflicting records that escape detection may not be discovered until after the ballot has been cast and commingled with all others, when it can no longer be identified or withdrawn.

Election security depends upon meaningful verification before voting. This ballot question would replace advance review with hurried, same-day judgments that could create avoidable vulnerabilities in election administration, increase the risk that unlawful ballots could affect close contests, and weaken confidence that every ballot was lawfully cast in our elections. Vote No.

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QUESTION 4: Majority Report

A majority of the Special Joint Committee on Initiative Petitions

Article 48 of the Amendments to the Constitution of the Commonwealth allows voters to propose laws or constitutional amendments through initiative petitions, commonly called ballot questions. After gathering the required signatures and submitting certified signatures to the Secretary of the Commonwealth, a petition is formally presented to the Legislature for consideration. It is then referred to a committee, in this case, the Special Joint Committee on Initiative Petitions.

Under Article 48, the committee must report to the Legislature on each petition before the first Wednesday in May. Unlike the standard legislative process, the Legislature may only approve or reject an initiative petition as submitted, without making changes.

The Committee held a hearing on Initiative Petition 25-08, House 5001, *Initiative Petition for a Law Relative to Election Day Registration*, on March 31, 2026. The Special Joint Committee on Initiative Petitions held public hearings throughout March 2026 to gather testimony and inform its review. The Committee considered input from subject matter experts, proponents and opponents of the Petition, as well as members of the public. The full hearing record and supporting documentation is available to the public at malegislature.gov/Events/Hearings/Detail/5603.

On May 4, 2026, a majority of the Special Joint Committee on Initiative Petitions ("the Committee") voted to recommend that the General Court **take no action** on Initiative Petition 25-08, House 5001, *Initiative Petition for a Law Relative to Election Day Registration* ("the Petition").

In reaching this determination, the Committee conducted a comprehensive review of the proposed measure, including a detailed analysis of its language, structure, and intended effect. The Committee evaluated testimony and supporting evidence presented during the public hearing, as well as supportive written submissions from election officials, policy experts, advocacy organizations, and members of the public. In addition, potential legal, administrative, and fiscal implications associated with implementing the proposal at both the state and municipal levels were raised along with the identification of staffing and technology infrastructure needs, that testifiers believed were necessary to implement same day registration.

The Petition proposes to establish a system of election day registration, allowing otherwise eligible voters to register and cast a ballot on the same day, including during early voting periods and on election day itself. The Committee recognizes the importance of promoting civic engagement and ensuring broad and equitable access to the electoral process.

The Committee supports ongoing efforts to expand voter access and participation but finds the petition as written (which the Legislature cannot modify) does not adequately address the operational challenges raised by the testimony it received.

It is important to note that Article 48 of the Amendments to the Massachusetts Constitution, which governs the initiative petition process, requires the Attorney General to provide initial certification of initiative petitions that meet the specific and limited requirements listed in Article 48. In making a decision on whether to initially certify an initiative petition, the Attorney General does not evaluate a petition's broader constitutionality; her certification decision is limited only to the narrow criteria listed in Article 48. Thus, this Petition has been certified by the Attorney General under Article 48, but it has not been evaluated by her or the courts for its constitutionality at this time.

For these reasons, a majority of the Committee recommends that the General Court **take no action** on Initiative Petition 25-08, House 5001, *Initiative Petition for a Law Relative to Election Day Registration*.

Senators.	**Representatives.**
Cindy F. Friedman	Alice Hanlon Peisch
Brendan P. Crighton	Kate Hogan
Barry R. Finegold	Frank A. Moran
	Michael S. Day
	David T. Vieira

QUESTION 3: Full Text of Proposed Law (continued)

summon the candidates who have received the tie votes to appear before them at a time and place to be designated by them. The state secretary shall at that time and place break the tie by lot.

SECTION 16. Section 33 of Chapter 54 of the General Laws is hereby amended by striking the phrase “and elections and of voting for candidates of more than one political party at a primary” from the first paragraph thereof, striking the final sentence of the second paragraph thereof, and striking the phrase “or of voting for candidates of more than one political party at a primary” from the third paragraph thereof,

SECTION 17. Section 43A of Chapter 54 of the General Laws is hereby amended by striking the phrase “at a state election” from the first sentence thereof.

SECTION 18. This act shall take effect on January 1, 2028.

SECTION 19. The provisions of this act are severable, and if any clause, sentence, paragraph or section of this law or an application thereof shall be adjudged by any court of competent jurisdiction to be invalid, such judgment shall not affect, impair, or invalidate the remainder thereof but shall be confined in its operation the clause, sentence, paragraph, section or application adjudged invalid and such clause, sentence, paragraph, section or application shall be reformed and construed so that it would be valid to the maximum extent permitted.

QUESTION 4: Full Text of Proposed Law

An Act relative to election day registration.

Be it enacted by the People, and by their authority;

SECTION 1. Section 1 of chapter 51 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking out the last sentence and inserting in place thereof the following sentence:- A person otherwise qualified to vote for national or state officers, but who has not registered in accordance with the provisions of section 26 of this chapter shall be eligible to register under section 34A.

SECTION 2. Section 1F of chapter 51 of the General Laws is hereby repealed.

SECTION 3. Said chapter 51, as so appearing, is hereby amended, by striking out section 3, as so appearing, and inserting in place thereof the following section:

Section 3. For all elections and primaries, a person shall be registered and may vote in the voting precinct where they reside; provided, however, that any registered voter of a city or town who moves to any other precinct in said city or town or to another city or town may register to vote at their new address by making written application to the city or town clerk no later than the close of registration or in accordance with the provisions of section 34A of this chapter. A new resident of the city or town may also, upon like application, be registered at the new address by making written application to the city or town clerk no later than the close of registration or in accordance with the provisions of section 34A. The city or town clerk shall forthwith notify each voter making any such written application that the same has been received and that they may vote, subject to the provision of this section regarding the close of registration, in the precinct into which they have moved or in accordance with provisions of section 34A.

SECTION 4. Section 26 of said chapter 51, as so appearing, is hereby amended by striking the last sentence.

SECTION 5. Said chapter 51 is hereby further amended by striking out section 34, as appearing in the 2022 Official Edition, and inserting in place thereof the following section:—

Section 34. Except as otherwise provided in section 34A, after 5:00 p.m. of a day on which registration is to cease, the registrars shall not register any person to vote in the next election, except that they shall furnish, or cause to be furnished, to each person waiting in line at the hour of 5:00 pm for the purpose of being registered, a card or slip of identification bearing such person’s name and shall, before registration ceases, permit such person to register.

SECTION 6. Said chapter 51 is hereby further amended by inserting after section 34 the following section: —

Section 34A. (a) An individual who is eligible to vote may register on the day of an election by appearing in person at the appropriate polling place for the precinct in which they reside, during the hours in which polls are open for voting, by completing a registration application in a form prescribed by the state secretary, by presenting to the appropriate election official proof of residency and by making a written oath which shall be as follows: I certify that I: am a citizen of the United States; am at least 18 years old; am not under guardianship that prohibits me from registering and/or voting or otherwise prohibited from

QUESTION 4: Full Text of Proposed Law (continued)

voting; am not temporarily or permanently disqualified by law because of corrupt practices in respect to elections; have not and will not vote in this election in any other location within the Commonwealth or elsewhere; have read and understand this statement. I further understand that giving false information is a felony punishable by not more than 5 years imprisonment or a fine of not more than $10,000, or both.

(b) For purposes of this section, the term "proof of residence" shall mean one of the following, so long as it includes the name of the applicant and the address from which they are registering:

(i) a valid photo identification including, but not limited to, a Massachusetts driver's license or other state-issued identification card; or

(ii) other documentation demonstrating the name and address where the applicant maintains residence and seeks to register including, but not limited to, a copy of a current utility bill, bank statement, government check, residential lease agreement, wireless telephone statement, paycheck, other government document or correspondence, a current student fee statement or other document from a post-secondary educational institution that verifies the student's current address.

(c) Upon meeting the identity requirements of subsection (a), production of proof of residence, and the making of an oath sufficient to support registration, the ballot clerk or their designee shall permit the applicant to vote in that election. Any person who registers to vote on the day of an election in accordance with this section shall, absent disqualification, be registered to vote at all subsequent primaries and elections.

(d) A registrant who fails to present suitable identification shall be permitted to cast a provisional ballot pursuant to the provisions of section 76C of chapter 54, but shall be required to return before the close of polls on a municipal election, within two business days after a state primary or within six days following a state election to present sufficient identification to the local election officials in order for the local election officials to determine that the registrant is qualified to vote in such election and whether to count the provisional ballot.

(e) Not less than seven days prior to any election, the registrars for each city or town shall publish all polling locations and the applicable dates and hours. Notice shall be conspicuously posted in the office of the local election officials or on the principal official bulletin board of each city or town, on any other public building considered necessary, on the city or town's website, if any, and on the website of the state secretary.

(f) The state secretary shall make available to the election officers at each polling location, to the extent possible, access to the statewide list of registered voters as contained in the central registry of voters set forth in section 47C.

(g) The local election officials may correct information supplied by the registrant to the extent necessary to maintain the integrity of their records. If an affidavit is incomplete or if it appears from the facts set forth in the affidavit that the registrant is not qualified to register as a voter, the local election officials shall proceed in accordance with the provisions of section forty-seven.

(h) As soon as practicable after the election, but not more than thirty days after the election, the registrars shall add the registrant's name, address and effective date of registration to the annual register of voters.

(i) This section shall not apply to an individual seeking to register to vote in any town for the purposes of voting at annual town meeting or special town meeting.

(j) A voter shall not change party enrollment at a primary under this section.

(k) The state secretary shall adopt regulations to implement the relevant provisions of this chapter.

(l) Upon credible information or allegation of illegal voter registration, or credible information or allegation of illegal multiple voting, there shall be an investigation upon the merits of said information or allegation by the attorney general, or by the district attorney having jurisdiction over the municipality in which the alleged illegal registration or illegal multiple voting occurred. Nothing in this subsection shall be construed as excluding enforcement of this section by any means otherwise provided by law.

(m) Violations of this section shall be punishable under sections 8, 26 and 27, of chapter 56.

SECTION 7.This act shall take effect on January 1, 2028.